



PANKAJ TIWARI

“The bill will help only to subsidise low-quality private schools which impart mediocre education.”

PUSHPA M. BHARGAVA, Former vice-chairman, National Knowledge Commission



of the Saikia Committee, however, estimated that Rs 1,36,000 crore would be required to implement the fundamental right to education over a period of 10 years. To compound the vagueness, HRD Minister Kapil Sibal has vowed that he will make a demand for additional resources only when the bill is enacted.

That's not all. There are a series of bureaucratic hurdles. The Union Budget so far has not allocated any money for the ambitious project. Not only that, with education being a state subject, the Centre will have to finalise the norms for cost-sharing. The overburdened states may object to the Centre's plan to fix cost-sharing at a

65:35 ratio. If the Government wants the bill to take off, it will need to obtain Parliament's sanction for a revised budget allocation. What's worse, the bill has actually admitted that the standard of government schools is below par. According to it, a school needs to have only a minimum of two teachers and two classrooms. "At present, usually, primary schools have five grades. If they are accommodated in two classrooms and taught by only two teachers, what will be the quality of education the country can guarantee?" asks P. Rajeev, a Rajya Sabha member from the CPI(M).

The HRD minister argues that the Government will find a way to settle financial worries related to the bill with the state governments. "The bill is concerned only with two issues—the right of the child to be educated and the obligation on the Government to give him that education. The rest of it is yet to be implemented because we will formulate a policy to ensure that all children in schools get the kind of education required to make them good citizens of this country," says Sibal.

But none of this seems to have affected the politicians. When the bill came up for discussion in the Rajya Sabha, only 60-odd MPs were present. Leader of the Opposition in the Rajya Sabha Arun Jaitley sat for a little while and came back only when the discussion was wrapping up. When the bill was eventually passed in the House, only 54 MPs were present. If any of the members had pressed for a vote, the "historic opportunity" would have been lost as only 25 members on the treasury benches and 29 in the Opposition were present at the time.

But perhaps a bill that began its journey 16 years ago with a Supreme Court ruling in the 1993 Unnikrishnan vs State of Andhra Pradesh which said that "the citizens of this country have a fundamental right to education" could afford to wait to get it right. ■

OVER 20,000 ELEMENTARY SCHOOLS ARE REQUIRED TO TEACH NEW STUDENTS

WHAT'S ON THE ANVIL

- All children between the ages of six and 14 years should have the right to free and compulsory elementary education in a neighbourhood school.
- Kendriya Vidyalayas, Navodaya Vidyalayas, Sainik schools and unaided schools should admit at least 25 per cent of students from disadvantaged and economically weaker groups.
- No child can be held back, expelled, or required to pass a board examination until the completion of elementary education and schools cannot screen applicants during admission or charge capitation fee.
- Teachers are prohibited from giving private tuitions and undertaking non-teaching duties except for census, disaster relief and election work.



BUT CAN IT HAPPEN?

- Implementing the bill will require an investment of over Rs 2 lakh crore in the next seven years. But the bill fails to factor in the expenses required to implement the project.
- There are no specific penalties and legal remedies if the authorities fail to provide the right to elementary education.
- Job sharing is not specified. It may lead to neither the state nor the Centre being held accountable.
- The bill provides for the right to schooling but does not guarantee quality education. The Government will compensate private schools only the fee equivalent of what it spends in its schools.
- The constitutional validity of reservations in private schools for economically weaker sections and reservation in minority run schools could be challenged.